

Serial No. 10-13
Regular List

HIGH COURT OF MEGHALAYA
AT SHILLONG

MC(WA). No. 3 of 2020 in WA. No. 4 of 2020 with
MC(WA). No. 4 of 2020 in WA. No. 5 of 2020 with
MC(WA). No. 5 of 2020 in WA. No. 6 of 2020 with
MC(WA). No. 6 of 2020 in WA. No. 7 of 2020

Date of Order 10.02.2020

Shri. Daskhem Doome	Vs.	State of Meghalaya & Ors.
Shri. Daskhem Doome	Vs.	State of Meghalaya & Ors.
Shri. Donbert Pyrbot	Vs.	State of Meghalaya & Ors.
Shri. Donbert Purbot	Vs.	State of Meghalaya & Ors.

Coram:

Hon'ble Mr. Justice Mohammad Rafiq, Chief Justice

Hon'ble Mr. Justice W. Diengdoh, Judge

Appearance:

For the Petitioner/Appellant(s)	: Dr. N.Mozika, Sr. Adv. with Ms. S.A.Shallam, Adv.
For the Respondent(s)	: Mr. B.Bhattacharjee, AAG with Ms. R.Colney, GA.

All the appeals are time barred having been filed after a delay of twenty-seven days for condonation of delay. In the application seeking condonation of delay, it is stated that the judgment passed by the learned Single Judge on 29-11-2019, the certified copy, although applied immediately, was received on 02-12-2019, counting the period consumed in obtaining the certified copy of the judgment, the appeals could have been filed on or before 27-01-2020. However, registry of this Court being closed for winter vacation from 15-12-2019 and only reopened on 27-01-2020, the appeals could be filed only on 31-01-2020. The learned counsel submitted the delay in filing the appeals, therefore, be condoned and appeals be entertained on merits. Normally, if the appellant wanted to avail the benefit of vacation, it was required of him to file the appeals on the very first day of reopening of the Court on 27-01-2020. Even then, the appeals were filed on 31-01-2020, the total delay period counting is twenty-seven days. In the

facts of the case, however, we condone the delay, matter was heard on merits. Delay is condoned.

Accordingly, Misc. applications stand disposed of.

(W.Diengdoh)
Judge

(Mohammad Rafiq)
Chief Justice

Meghalaya
10.02.2020
"Samantha PS"

